

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Plaintiff,

-against-

ANTHONY F. FERRARA and METRO-NORTH
COMMUTER RAILROAD,

Defendants.
-----X

**RESPONSE TO DEFENDANTS'
VARIOUS DISCOVERY
DEMANDS**

Index No.: 160000/2024

Plaintiff, JUSTIN SAPINI, by his attorneys, STOLZENBERG CORTELLI, LLP, as
and for his response to Defendants, **ANTHONY F. FERRARA** and **METRO-NORTH
COMMUTER RAILROAD**'s various Discovery Demands, dated December 2, 2024, upon
information and belief, set forth the following:

GENERAL RESPONSES AND OBJECTIONS

Each of the Responding Plaintiff's responses, in addition to any specifically stated
objections, is subject to and incorporates the following general responses and objections. The
assertion of the same, similar, or additional objections, or a partial response to any individual
request does not waive any of the plaintiff's general responses and objections.

1. The following responses reflect the current state of the plaintiff's knowledge,
understanding and belief respecting matters about which inquiry has been made. The plaintiff
expressly reserves his right to supplement or modify these responses with such pertinent
information as he may hereafter discover or as may be informed by the opinions of experts
retained by the parties to testify in the trial of this matter and will do so to the extent required
by the CPLR. The plaintiff expressly reserves the right to rely on, at any time, including trial,
subsequently discovered documents and/or materials that have been produced promptly upon
discovery.

2. The plaintiff objects to any demand that seeks information constituting or containing information concerning communications between the plaintiff and his counsel, which are protected by the attorney-client privilege.

3. The plaintiff objects to any demand that seeks information constituting or containing information prepared in anticipation of or as a result of litigation or which is otherwise protected by the work product doctrine or other available privilege or protection.

4. The inadvertent provision of information or the production by the plaintiff of documents containing information protected from discovery by the attorney-client privilege, work product doctrine or any other applicable privilege, shall not constitute a waiver of such privileges with respect to that information or those or any other documents. In the event that inadvertent production occurs, the Defendants shall return all inadvertently produced documents to the plaintiff upon request, and/or shall make no use of the contents of such information or documents nor premise any further discovery on information learned therefrom.

5. The plaintiff objects to any demand to the extent that it purports to impose upon him/her any obligation beyond those imposed by the CPLR.

6. The plaintiff objects to these demands to the extent that they are over-broad, unduly burdensome, vague, ambiguous, confusing, require speculation to determine their meaning or use imprecise specifications of the information sought.

7. The plaintiff objects to any demand to the extent that it seeks information neither relevant to the subject matter of this litigation nor reasonably calculated to lead to the discovery of admissible evidence.

8. The plaintiff objects to any demand as unduly and unnecessarily burdensome to the extent that it seeks information that is a matter public record, already in the Defendants' possession, or otherwise readily available to the Defendants, and, therefore, may be accessed and obtained by the Defendants with less burden than the plaintiff can identify and provide requested information.

9. None of the objections or responses contained herein is an admission concerning the existence of any documents or materials, the relevance or admissibility of any documents, materials or information, or the truth or accuracy of any statement or characterization contained in Defendants' First Set of Discovery Demands. The plaintiff's responses are made without waiving, but, on the contrary, expressly reserving: (a) the right to object, on the grounds of competency, privilege, relevancy, materiality or any other proper grounds, to the use of the information provided herein, in whole or in part, in any subsequent proceeding in this action or any other action; (b) the right to object on any and all grounds, at any time, to other discovery requests involving or relating to the subject matter of these requests; and (c) the right at any time to revise, correct, add or clarify any of the responses provided herein.

10. The plaintiff objects to any demand that seeks information that is already in the defendants' possession.

11. Unless otherwise indicated, the plaintiff will not provide information encompassed by their general responses and objections or by their specific objections set forth below.

SPECIFIC OBJECTIONS AND RESPONSES**RESPONSE TO DEMAND FOR WITNESS INFORMATION**

Plaintiff is not aware of any witnesses to the within accident other than the parties named herein and those listed on the Police Accident Report.

**RESPONSE TO DEMAND FOR PARTY STATEMENTS
PURSUANT TO CPLR 3101(E)**

Plaintiff took no statements, oral, written, visual, photographic or electronically recorded, of the Defendants as contemplated by the CPLR. Plaintiff reserves the right to utilize any such statements at the time of trial if and when discovered. Plaintiff is not in possession of any such transcripts of recorded statements taken of or from the parties, agents, servants or employees, other than the 50-h transcript which are provided with plaintiff's discovery responses.

RESPONSE TO DEMAND FOR COPIES OF MEDICAL REPORTS

Plaintiff provided names of his medical providers in his Bill of Particulars along with HIPAA authorizations. A copy of same is being provided with plaintiff's discovery responses and will be exchanged with all parties.

RESPONSE TO DEMAND FOR PRIOR AND/OR SUBSEQUENT INJURIES

Not applicable.

RESPONSE TO DEMAND FOR LAWSUITS AND/OR CLAIMS/INCIDENTS

As a result of the within accident, Plaintiff commenced a lawsuit in New York County Supreme Court under index number 150940/2024.

RESPONSE TO DEMAND FOR PHOTOGRAPHS, VIDEOS, TAPES, ETC.

Plaintiff is in possession of twenty-two (22) color copied photographs depicting the property damage to the vehicles involved in the within accident and plaintiff's injuries. Plaintiff is not currently in possession of any videos.

RESPONSE TO DEMAND FOR COLLATERAL SOURCE INFORMATION

Plaintiff has received No-Fault benefits through Progressive Insurance Company, located at P.O. Box 2930, Clinton, Iowa 52733, claim number [REDACTED]. A duly executed authorization permitting the release of plaintiff's No-Fault records from Progressive Insurance Company is provided with plaintiff's discovery responses.

**RESPONSE TO DEMAND FOR MEDICAL INFORMATION,
RECORDS AND AUTHORIZATIONS**

Plaintiff provided names and addresses of his medical providers in his Bill of Particulars along with a courtesy copy of the medical records currently in plaintiff's possession, as well as duly executed, HIPAA compliant authorizations. Copies of same are provided with plaintiff's discovery responses and will be exchanged with all parties.

RESPONSE TO DEMAND FOR RADIOLOGICAL FILMS

Plaintiff provided names and addresses of his medical providers in his Bill of Particulars along with a courtesy copy of the medical records currently in plaintiff's possession, as well as duly executed, HIPAA compliant authorizations. Copies of same are provided with plaintiff's discovery responses and will be exchanged with all parties.

**RESPONSE TO DEMAND FOR POLICE, ACCIDENT, INCIDENT
OR AIDED REPORTS**

Annexed is a copy of the Police Accident Report.

RESPONSE TO DEMAND FOR TAX RECORDS

To be provided under separate cover.

RESPONSE TO DEMAND FOR WORKERS' COMPENSATION RECORDS

Not applicable.

RESPONSE TO DEMAND FOR EMPLOYMENT RECORDS

An authorization permitting the release of plaintiff's employment records is provided with plaintiff's discovery responses.

RESPONSE TO DEMAND FOR EXPERT WITNESS INFORMATION**RESPONSE TO REQUEST FOR DISCOVERY OF EXPERT
WITNESS INFORMATION – AS TO ALL EXPERTS**

Plaintiff objects to this demand to the extent it seeks information beyond the scope required by CPLR 3101(d). Without waiving said objection, Plaintiff has not specifically engaged an expert who is expected to testify at a trial of this action and expressly reserves the right to do so and to disclose the identity of the same in accordance with the provisions of the C.P.L.R. Plaintiff objects to providing dates of all reports rendered by each such expert as well as code sections, as beyond the scope of disclosure required by CPLR 3101(d). Notwithstanding the foregoing, Plaintiff expects to call any physician or other health care providers whose name appears in any of Plaintiff's medical records with respect to this case, as well as to any physician or health providers who has examined or treated the Plaintiff in connection with the injuries claimed to have resulted from the accident which is the subject of this action, including, but not limited to, other physicians and other health providers who have examined the Plaintiff. In addition to the foregoing, this Plaintiff intends to call any physician or health care providers whose testimony may be necessary to support, refute or rebut claims that are hereinafter alleged or arise during the course of trial. Said physicians will be qualified to testify in the action by virtue of being qualified to practice medicine in the State of New York and/or another state, having graduated from medical school, having become affiliated with various hospitals, having qualified in a medical specialty, having Board certification, having been a member of various medical societies and/or associations; and having been otherwise qualified to testify as an expert. Said physicians will also testify on the subject of the Plaintiff's medical condition, including, but not limited to, the nature and extent of the Plaintiff's injuries and disabilities and their causal connection to the accident.

Additionally, Plaintiff reserves the right to produce a radiologist qualified in radiology, having Board certifications, having been a member of various medical societies and/or associations; and having been otherwise qualified to testify as an expert in radiology who will interpret any x-rays, MRIs or cat-scans which may have been performed on the Plaintiff in connection with the diagnosis and treatment of the injuries sustained in the accident.

AS TO EXPERTS ON ECONOMIC ISSUES

See response above.

RESPONSE TO DEMAND FOR MEDICARE/MEDICAID INFORMATION

Plaintiff is a recipient of New York State Medicaid benefits.

RESPONSE TO DEMAND FOR SOCIAL SECURITY DISABILITY CLAIMS

An authorization for the release of plaintiff's Social Security Disability records will be provided under separate cover.

RESPONSE TO DEMAND FOR BANKRUPTCY STATUS

Not applicable.

RESPONSE TO DEMAND FOR BILLS AND RECEIPTS

Not applicable.

RESPONSE TO DEMAND FOR DIAGRAM, DRAWINGS, NOTES, RECORDS

Not applicable, plaintiff is not in possession of any such item(s).

RESPONSE TO NOTES, RECORDS, MEMORANDA, DIAGRAMS, ETC.

Not applicable, plaintiff is not in possession of any such item(s).

RESPONSE TO DEMAND FOR MAINTENANCE AND REPAIR RECORDS

Not applicable, this demand is directed to Defendant(s).

**RESPONSE TO DEMAND FOR LETTERS OR WRITTEN
COMMUNICATIONS**

Not applicable.

RESPONSE TO DEMAND FOR INSURANCE INFORMATION

Not applicable to plaintiff. This demand is hereby directed to all defendants.

RESPONSE TO DEMAND FOR SOCIAL MEDIA

Plaintiff objects to this demand to the extent that defendants seek social media login information and passwords. Plaintiff will however allow defendants to view plaintiff's social media posts - not private conversations - only after plaintiff's deposition has been completed in the presence of plaintiff and his counsel at plaintiff's counsel's office, if plaintiff has social media accounts.

RESPONSE TO DEMAND FOR STATEMENT OF DAMAGES

Plaintiff objects to this demand as improper as Plaintiff places his trust in a trier of fact to determine the total damages to which Plaintiff may be entitled. Over said objection, but without waiving same, Plaintiff states that he was damaged in an amount to be determined by a trier of fact, not to exceed \$10,000,000.

Plaintiff expressly reserves his right to supplement and amend each of the foregoing responses up to and including the time of trial.

Dated: White Plains, New York
January 2, 2025

Yours, etc.

Howard B. Stolzenberg
HOWARD B. STOLZENBERG
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File No.: 1805CS-28142M

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JUSTIN SAPINI,

Plaintiff,

-against-

ANTHONY F. FERRARA and METRO-NORTH COMMUTER RAILROAD,

Defendants.
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RESPONSE TO COMBINED DEMANDS

STOLZENBERG CORTELLI, LLP.

Attorneys for Plaintiff

JUSTIN SAPINI

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White Plains, New York 10603

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Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

DATED: White Plains, New York
January 2, 2025

Howard B. Stolzenberg

HOWARD B. STOLZENBERG